IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.301

C.P.(CAA)/23(AHM)2023 in C.A.(CAA)/31(AHM)2023

Proceedings under Section 230-232

IN THE MATTER OF:

Supernova Systems Pvt Ltd **.....Applicants**
Supernova Engineers Ltd

Order delivered on: 12/09/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Sameer Kakar, Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for pronouncement of the order. The order is pronounced in the open court, vide separate sheet.

-Sd- -Sd-

SAMEER KAKAR **SHAMMI KHAN**
MEMBER (TECHNICAL) **MEMBER (JUDICIAL)**

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT-1

CP (CAA) No. 23 of 2023
in
CA(CAA) No. 31/NCLT/AHM/2023

[Application under Sections 230-232 of Companies Act, 2013 read with the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016]

Scheme of Amalgamation

Between

Supernova Systems Private Limited

(Transferor Company)

With

Supernova Engineers Limited

(Transferee Company)

And

Their respective Shareholders and Creditors

In the matter of:

Supernova Systems Private Limited
(CIN: 31110GJ1989PTC012833)
Having its Registered office at:
3, B Wing, First Floor,
Shapath Hexa, Nr. Sola Bridge, Opp. Gujarat High
Court, Sarkhej Gandhinagar Road, Ahmedabad 360 060
Gujarat.

...Petitioner Company No.1 /
Transferor Company.

With

Supernova Engineers Limited
CIN: U31100GJ1987PLC009346
Having its Registered office at:
F2, First Floor, Shapath,
Hexa, Nr. Sola Bridge, Opp. Gujarat High Court,
Sarkhej, Gandhinagar Road, Ahmedabad – 360 060

…Petitioner Company No.2 /
Transferee Company

Order Pronounced on: 12/09/2023

Coram: Mr. Shammi Khan, Hon'ble Member(J)
Mr. Sameer Kakar, Hon'ble Member(T)

Appearance:
Ms. Swati Soparkar, Advocate for the Petitioners.

O R D E R

1. The present joint petition has been filed by the Petitioner Companies under Sections 230-232 of the Companies Act, 2013 read with Companies (Compromise, Arrangement and Amalgamations) Rules, 2016 seeking approval of the Scheme of Amalgamation in the nature of Merger of Supernova Systems Private Limited (Transferor Company) with Supernova Engineers Limited (Transferee Company) and their respective Shareholders and Creditors with the effect from 01st April 2022, being the Appointed Date as mentioned in the Scheme.

2. An Affidavit in support of the Company Petition has been sworn by Mr. Jitesh M. Shah, Director /Authorised Signatory of the Petitioner Companies and the same is annexed to the Company

Petition. The above-named Authorised Signatory for the Petitioner Company has been authorised vide Board Resolutions dated 22.11.2022 passed by the Petitioner Companies.

3. The averments made by the Petitioner Companies are summarised as under:

(i) The petitioner companies had filed before this Tribunal a joint Company Application being CA (CAA) No. 31 of 2023 and sought dispensation of the meetings of the Equity Shareholders, Secured and Unsecured Creditors of the Transferor and Transferee Company. Vide an order dated 19.05.2023, the meetings of the Equity Shareholders and Secured Creditors of both the Petitioner Companies were dispensed with in view of consent letters by way from all being placed on record. The meetings of the Unsecured Creditors of both the Petitioner Companies were dispensed with in view of the consent letters from requisite majority of them being placed on record.

(ii) By the aforesaid first order dated 19.05.2023, this Tribunal had directed the Applicant Companies to serve Notice of the Scheme in compliance with Sec. 230 (5) of the Companies Act, 2013 in the Form 'CAA-3' to the Statutory Authorities-viz. (i) Central Govt. through the Regional Director, North-Western Region, (ii) Registrar of Companies, Gujarat, (iii) concerned Income Tax Authorities, for both the companies; and (iv) Official Liquidator, Gujarat, only for the Transferor Company along with a copy of the Scheme and other requisite documents and disclosures stating that representation, if any, to be

made by them, be made within 30 days from the date of receipt of such notice. The concerned petitioner companies served the said notices and affidavit of service was filed on 23.05.2023 with the proofs of service.

(iii) It is stated that the joint petition, CP (CAA) No. 23 of 2023 was filed on 26.05.2023 and was admitted on 13.06.2023. The date of hearing was fixed as 18.07.2023. Directions were issued to publish Notice of hearing of Petition in the newspapers, and serve Notice of hearing of the Petition to the statutory authorities. In compliance to the order, the Petitioner companies served notices to the respective Authorities. The notice of hearing of petition was published in vernacular language (Gujarati Daily) 'Financial Express' Ahmedabad Edition and in English language (English Daily) 'Financial Express' Ahmedabad edition dated 26.06.2023. The Petitioner Companies duly complied with the directions. The affidavit of service, on behalf of the Petitioner Companies, dated 27.06.2023 has been filed on 30.06.2023 confirming the publication of the notice in the newspapers as directed and also the notice of hearing of the petition has been served upon all the concerned statutory authorities

(iv) In response to such notices, the Regional director filed its report on 12.06.2023, along with the report from Registrar of Companies dated 5th June 2023. Their observations are as follows:

a. The transferee company is to undertake the compliance of section 232(3)(i) of the Companies Act, 2013 and to pay fees, accordingly.

b. The Auditor's qualification in financial statements of the transferee company pertaining to non-compliance with regard to provisions for employee benefits in consonance with the applicable Accounting Standard-15.

c. The petitioner companies to pay legal fees/cost to the Central Government.

(v) The Office of the Official Liquidator also filed a report dated 9th June 2023, seeking directions as follows:

a. The Transferor Company to preserve its books of accounts, papers and records and shall not dispose them without prior permission of the Central Government as per the provisions of the Section 239 of the Companies Act, 2013.

b. has sought the submission of the Amended Clause V of the Memorandum of Association in Post Scheme scenario,

c. The transferor company to ensure statutory compliance of all applicable laws and also on sanctioning of the Scheme, the Transferor Company shall not be absolved from any of its statutory liability, in any manner.

d. The transferee company to pay such cost and expenses to the office of the Official Liquidator for the transferor company or any such amount as may be considered appropriate by this Bench.

e. The petitioner companies to lodge a certified copy of order along with the Scheme, with the concerned superintendent of stamp duty for determination of stamp duty payable, if any.

(vi) The Petitioner Companies had filed a common additional affidavit dated 12.07.2023 in response to the said representations of the Regulatory Authorities. It has been submitted in response to the observations of the Regional Director, as follows:

a. For differential fees, on consolidation of Authorised Capital, the transferee company gave undertaking for compliance of section 232(3)(i) of the Companies Act, 2013.

b. It has been confirmed that the unintentional lapse on part of the Transferee Company is now rectified and requisite compliances are made to AS-15.

c. The transferee company gave undertaking to preserve the books of accounts, papers and records of the transferor companies and not to dispose of the same without prior permission of the central govt. as per the provisions of section 239 of the Companies Act, 2013.

d. The Transferee Company provided Clause V of its Memorandum of Association in Post Scheme scenario as follows:

"The Authorised Share Capital of the Company is Rs.5,26,00,000/- (Rupees Five Crore Twenty Six Lakh Only) divided into 52,60,000 (Fifty Two Lakh Sixty Sixty Thousand) Equity Shares of Rs.10/- (Rupees Ten) each."

e. The transferee company gave undertaking for statutory compliance of all applicable laws and also confirmed that on sanctioning of the scheme, the transferor company shall not be absolved from any of its statutory liability, in any manner.

(vii) It had been confirmed by the learned advocate for the petitioners that a copy of the said Additional Affidavit in response to the representations have been served upon the Regional Director, the Registrar of Companies, the Office of the Official Liquidator.

(viii) A common representation dated 17.07.2023 was received from the Income Tax Authorities for both the petitioner companies, seeking directions as follows:

a. the outstanding demand of Rs. 8,82,230/- standing against the Petitioner Transferor Company for different assessment years be migrated to the Petitioner Transferee Company.

b. that relevant provisions of the Income Tax Act should be complied with and in case of non-compliance of any of the relevant provisions, the Income Tax Authority shall have liberty to invoke relevant provisions of the Act.

c. the said Authority reserves its right to invoke relevant provisions of the Income Tax Act, in proceedings subsequent to amalgamation, if any.

(ix) The petitioner companies filed their response to the same vide Additional Affidavit dated 18.07.2023. It has been submitted in response to the said observations, as follows:

a. that the petitioner companies have no objection to the same, however, the pending appellate proceedings/ rectification applications, if any initiated by the petitioner Transferor Company also be permitted to be continued by the Transferee Company.

b. the petitioner companies are duty bound to comply with the applicable provisions of the Income Tax Act. It is always open to the authorities under the Income Tax Act to examine taxability or otherwise of any transaction at the stage of assessment proceedings.

c. the petitioner companies have undertaken to cooperate in any of the proceedings undertaken by Income Tax Authorities.

(x) As directed vide the order dated 18.07.2023, the Regional Director has submitted a further report dated 18.08.2023

and confirmed that considering the Additional Affidavit filed by the Petitioner Companies dated 12.07.2023 and considering the submissions made therein, the Office of Regional Director has no objections to the proposed Scheme.

(xi) It is submitted that the Scheme is not against the public policy. It has also been stated that it does not adversely impact interest of any secured and/or unsecured creditors of the petitioner companies. It has also been submitted that all statutory obligations under all applicable laws shall be complied with.

(xii) The petitioner companies have already placed on record a copy of the Valuation Report dated 21.12.2022, issued by Ms. Anjali Choksi, Registered Valuer with the 1st motion Application itself alongwith the detailed working and the basis of the valuation.

(xiii) The Petitioner Companies have stated in the Petition that no inspection or investigation has been instituted or is pending against any of the petitioner companies under the provisions of the Companies Act, 2013. It was also stated that if there is any deficiency found, or violation committed of any enactment, statutory rules or regulations, the sanction granted by the Tribunal to the scheme will not come in the way of action being taken in accordance with law, against the concerned persons, directors, and officials of the petitioners.

(xiv) In compliance with the proviso to clause (e) of sub-section (7) of Section 230 of the Companies Act, 2013, certificate from the statutory auditors of both the Petitioner Companies dated 24th March 2023 are placed on record confirming that the accounting treatment as proposed under the Scheme is in conformity with the applicable Accounting Standards prescribed under section 133 of the Companies Act, 2013.

4. We have heard Ms. Swati Soparkar, Ld. Counsel for the Petitioner Companies and have also gone through the records.

5. On the basis of above facts and submissions made by the Learned Counsel and by considering the entire facts and circumstances of the aforesaid company petition and on perusal of the Scheme and the proceedings, it appears that the requirements of the provisions of Sections 230 and 232 are satisfied by the petitioner companies. We are of the considered view that the proposed Scheme of Amalgamation is bona fide and in the interest of the shareholders and creditors. In the result, the Company Petition No. C P (CAA) No. 23 0f 2023 is allowed. The Scheme envisaging Amalgamation of Supernova Systems Private Limited, (Transferor Company) with Supernova Engineers Limited, (Transferee Company) is hereby sanctioned. The list of the assets of the Undertaking of the Transferor Company attached here as Annexure-A forms part of this order. It is declared that the said sanctioned scheme shall be binding on the petitioner companies and their shareholders, creditors and all concerned under the scheme.

6. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the Scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directions and officials of the Petitioner Companies.

7. While approving the Scheme as above, we further clarify that this order should not be construed as an order granting any exemption from payment of stamp duty, taxes including income tax. GST etc. or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law.

8. It is further clarified that Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and sanction of the Scheme of Amalgamation given hereunder shall not adversely affect the rights of Income Tax Department on any past, present or future proceedings.

9. This Tribunal orders as under:

(a) The Scheme of Amalgamation as annexed herewith as "Annexure-A" is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their Shareholders and Creditors and all concerned under the Scheme.

(b) All the property, rights and powers of the Transferor Company, specified in the first, second and third parts of the schedule of assets attached hereto and all the other property, rights and

powers of the Transferor Company be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to Section 232 of the Act, be transferred to and vested in the Transferee Company for all the estate and interest of the Transferor Company, but subject nevertheless to all charges now affecting the same, if any.

(c) All the liabilities and duties of the Transferor Company be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to Section 232 of the Act, be transferred to and become the liabilities and duties of the Transferee Company.

(d) All proceedings now pending by or against the Transferor Company be continued by or against the Transferee Company.

(e) The Petitioner companies within thirty days of the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the entire Undertaking of the Transferor Company shall stand transferred to the Transferee Company and the Registrar of Companies shall place all documents relating to the Transferor Company to the file kept by him in relation to the Transferee Company and the files relating to the said two companies shall be treated accordingly.

(f) Upon Scheme being effective, the Transferor Company shall stand dissolved without winding up.

(g) Consideration:

9.1 *The Transferee Company shall without any further application, act, instrument or deed, issue and allot to each shareholder of the Transferor Company whose name is recorded in the register of members of the Transferor Company on the Record Date in the following Ratio ("Share Entitlement Ratio");*

"440 (For Hundred and Forty) fully paid up Equity shares of Rs.10/- (Rupees Ten only) each of SEL, the Transferee Company for every 10 (Ten) fully paid Equity shares of Rs. 10/- (Rupees Ten only) each held by the shareholder in SSPL, the Transferor Company."

9.2 The Share Exchange Ratio has been arrived at on basis of the valuation report of Dr. C A Anjali Choksi, a Registered Valuer.

9.3 No new shares shall be issued by the Transferee Company against the shares of the Transferee Company held by the Transferor Company. Upon the scheme being effective, 1,65,000 (Four Lacs Sixty Five Thousand) shares held by the Transferor Company in the Transferee Company shall stand cancelled by operation of legal provisions and the issued, subscribed and paid up share capital of the Transferee Company shall stand reduced to that extent viz. Rs. 46,50,000/-. The same shall bected as envisaged specifically in Clause 11, hereinunder.

9.4 Upon the new equity shares in Transferee Company being issued and allotted to the equity shareholders of Transferor Company in terms of Clause 9.1 above, the equity shares of Transferor Company shall be deemed to have been automatically cancelled and be of no effect.

9.5 The shares to be issued and allotted by the Transferee Company in terms of Clauses 9.1 above shall be subject to the provisions of the Memorandum and Articles of association of

the Transferee Company and shall rank paripassu in all respects with the existing shares of Transferee Company.

9.6 The issue and allotment of shares by the Transferee Company to the equity shareholders of the Transferor Company as provided in this Scheme as an integral part thereof, shall be deemed to have been carried out without any further act or deed by Transferee Company as if the procedure laid down under Section 62(1)(c) of the 2013 Act and any other applicable provisions were duly complied with

(h) Upon Scheme being effective, the Authorised Capital of the Transferor Company shall be consolidated with the Authorised Capital of the Transferee Company as envisaged under clause 13 of the Scheme.

(i) The legal fees and expenses of the office of the Regional Director is quantified at Rs. 10,000/- in respect of each of the Petitioner Companies. The said fees to the Regional Director shall be paid by the Transferee Company.

(j) The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- in respect of the Transferor Company. The said fees of the Official Liquidator shall be paid by the Transferee Company.

(k) All concerned authorities to act on a copy of this order along with the Scheme of Amalgamation duly authenticated by the Registrar of this Tribunal. The Registrar of this Tribunal shall issue the authenticated copy of this order alongwith the Scheme of Amalgamation immediately.

(l) The Petitioner Companies are directed to lodge a copy of this order, and the approved Scheme and schedule of immovable assets of the Transferor Company attached as Annexure-A with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, on the same within 60 days from the date of the receipt of the order.

(m) The Petitioner Companies are directed to file a copy of this order alongwith a copy of the scheme with the concerned Registrar of Companies, electronically, along with E-form INC-28 as per relevant provisions of the Act.

(n) The Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and if it is found that the Scheme of Amalgamation ultimately results in tax avoidance or is not in accordance with the applicable provisions of Income Tax Act, then the Income Tax Department shall be at liberty to initiate appropriate course of action as per the law. Any sanction of the Scheme of Amalgamation under Sections 230-232 of the Companies Act, 2013 shall not adversely affect the rights of Income Tax Department or any past, present or future proceedings and the sanction of the Scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

(o) That any person interested shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

(p) The sanction of the scheme of amalgamation under Sections 230-232 of the Income Tax Act, 2013 shall not adversely affect the rights of Income Tax Department and the sanction of the scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

10. The Company Petition CP (CAA) No. 23 of 2023 connected with CA (CAA) No. 31 of 2023 is disposed of.

-Sd-
SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-
SHAMMI KHAN
MEMBER (JUDICIAL)

Stancy-Steno

Annexure "A"

ANNEXURE - F

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SCHEME OF AMALGAMATION

OF

SUPERNOVA SYSTEMS PRIVATE LIMITED

WITH

SUPERNOVA ENGINEERS LIMITED

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

This Scheme is presented pursuant to the provisions of Section 230 to 232 read with Section 66 and other relevant provisions of the Companies Act, 2013, as may be applicable, and also read with Section 2(1B) and other relevant provisions of the Income Tax Act 1961 (IT Act), as applicable for the amalgamation of the Transferor Company into and with the Transferee Company, on a going concern basis.

1. DESCRIPTION OF COMPANIES

A. Supernova Systems Private Limited is a private limited company incorporated on 4th October 1989 under the provisions of the Companies Act, 1956, with the Registrar of Companies, Gujarat. The CIN is U31110GJ1989PTC012833. The company has its registered office at 3, B wing, First Floor, Shapath Hexa, Nr. Sola Bridge, Opp Gujarat High Court, Sarkhej Gandhinagar Road, Ahmedabad 360 060 in the state of Gujarat. The Company is engaged in providing after sale services. It has the authorisation for servicing several brands of engines on PAN India basis.

B. Supernova Engineers Limited is a company originally incorporated on 2nd February 1987 under the provisions of the Companies Act 1956, with the Registrar of Companies, Gujarat as a private limited company. The status and name of the company was changed to closely held Public limited Company vide Fresh Certificate dated 21st April 1995. The Corporate Identity Number is U31100GJ1987PLC009346.The registered office of the company is situated at F2, First Floor, Shapath Hexa, Nr. Sola Bridge, Opp Gujarat High Court, Sarkhej Ganndhinagar Road, Ahmedabad 360 060 in the state of Gujarat. The Company is engaged in the business of manufacturing of Diesel Generator Sets and Acoustic Enclosures (Sound Proof system) consisting State-of-Art technology

Supernova Systems Pvt. Ltd. FOR, SUPERNOVA ENGINEERS LTD.

Director/Authorised Signatory, Authorised Signatory/Director

For, Supernova Systems Pvt. Ltd. D.

Director/Authorised Signatory AUTHORISED SIGNATORY/DIRECTOR

Diesel Engines. The company is Original Equipment Manufacturer for world's renowned engine manufacture Perkins Engine Co. Ltd, UK,AB Volvo Penta Sweden.

2. RATIONALE FOR THE SCHEME OF AMALGAMATION

Both the companies belong to the same group of management and the commercial activities are complimentary in nature. The rationale for the proposed Scheme is set out below:

(i) Simplification of group structure by eliminating multiple companies thus enabling focus on core competencies and unlocking of value.

(ii) Greater efficiency in cash management of the amalgamated entity, and unfettered access to cash flow generated by the combined business which can be deployed more efficiently to fund organic and inorganic growth opportunities, to maximize shareholder value.

(iii) Cost savings are expected to flow from more focused operational efforts, rationalization, standardization and simplification of business processes, productivity improvements, improved procurement, usage of common resource pool like human resource, administration, finance, accounts, legal, technology and other related functions, leading to elimination of duplication and rationalization of administrative expenses.

(iv) Healthier and larger balance sheet of both entities is expected to improve the credit profile, thereby enhancing the competitive positioning.

(v) The Scheme will help amalgamated entity in sharpening its competitiveness and developing its core competencies, in the long term, through cost savings and benefit of economies of scale. It would result in greater integration, greater financial strength and flexibility of the amalgamated entity which will improve the competitive position of the combined entity.

3. DEFINITIONS

In the Scheme, unless repugnant to the meaning or context thereof, the following expressions shall have the following meanings:

3.1 **"Act"** means the Companies Act, 2013 and the rules and regulations made there under, and includes any alterations, modifications, amendments made thereto and/or any re-enactment thereof;

Supernova Systems Pvt. Ltd. FOR, SUPERNOVA ENGINEERS LTD.

Director/Authorised Signatory Authorised Signatory/Director

For, Supernova Systems Pvt. Ltd. D.

Director/Authorised Signatory AUTHORISED SIGNATORY/DIRECTOR

3.2 **"Transferor Company"** means Supernova Systems Private Limited, or 'SSPL';

3.3 **"Transferee Company"** means Supernova Engineers Limited, or 'SEL';

3.4 **"Appointed Date"** means 1st April,2022, or such other date as may be directed by the NCLT and is the date with effect from which the Scheme shall upon sanction of the same by the NCLT, be deemed to be operative;

3.5 **"Board of Directors"** or **"Board"** in relation to each of the Companies, as the case may be, means the board of directors of such company and shall, unless repugnant to the context, include a committee of directors or any person authorized by the Board of Directors or such committee of Directors;

3.6 **"Effective Date"** means the date on which the certified copy of the Order of National Company Law Tribunal, Ahmedabad Bench under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 sanctioning the Scheme are filed with the Registrar of Companies, Gujarat at Ahmedabad.

3.7 **"NCLT"** or **"National Company Law Tribunal"** means the National Company Law Tribunal, Ahmedabad Bench or such other forum or authority as may be vested with any of the power to approve the Scheme under the 2013 Act;

3.8 **"Scheme", "the Scheme", "this Scheme"** means this Scheme of Arrangement in the nature of Amalgamation, with or without any modification approved or imposed or directed by the Tribunal;

3.9 **"Undertaking"** means and includes the whole undertaking and entire business of the Transferor Company as a going concern, including, without limitation:

(a) all the movable and immovable properties, tangible or intangible, including all computers and accessories, software, applications and related data, equity shares, preference shares and other securities of associate/ subsidiary/ joint venture companies, plant and machinery, equipment, furniture, fixtures, vehicles, stocks and

Supernova Systems Pvt. Ltd.

Director/Authorised Signatory

FOR, SUPERNOVA ENGINEERS LTD.

Authorised Signatory/Director

For, Supernova Systems Pvt. Ltd.

Director/Authorised Signatory

For, SUPERNOVA ENGINEERS LTD.

AUTHORISED SIGNATORY/DIRECTOR

inventory including, cables, leasehold assets and other properties, real, corporeal and incorporeal, in possession or reversion, present and contingent assets (whether tangible or intangible) of whatsoever nature, inverters, electrical fittings, submersible pumps, electrical erections, earthing and lighting systems, cash in hand, amounts lying in the banks, investments, escrow accounts, claims, powers, authorities, allotments, approvals, consents, letters of intent, registrations, contracts, engagements, arrangements, rights, credits, titles, interests, benefits, advantages, freehold/ leasehold rights, brands, sub-letting tenancy rights, leave and license permissions, goodwill, other intangibles, industrial and other licenses, approvals, permits, authorisations, trademarks, trade names, patents, patent rights, copyrights, and other industrial and intellectual properties and rights of any nature whatsoever including know-how, websites, portals, domain names, or any applications for the above, assignments and grants in respect thereof, import quotas and other quota rights, right to use and avail of telephones, telex, facsimile, email, internet, leased lines and other communication facilities, connections, installations and equipment, electricity and electronic and all other services of every kind, nature and description whatsoever, provisions, funds, and benefits (including all work-in progress), of all agreements, arrangements, deposits, advances, recoverable and receivables, whether from government, semi-government, local authorities or any other Person including customers, contractors or other counter parties, etc., all earnest monies and/ or deposits, privileges, liberties, easements, advantages, benefits, exemptions, licenses, privileges and approvals of whatsoever nature and wheresoever situated, belonging to or in the ownership, power or possession or control of or vested in or granted in favour of or enjoyed by the Transferor Company;

(b) all receivables, loans and advances, including accrued interest thereon, all advance payments, earnest monies and/ or security deposits, payment against warrants, if any, or other entitlements of the Transferor Company;

(c) all contracts, agreements, purchase orders/ service orders, operation and maintenance contracts, memoranda of understanding, memoranda of undertaking, memoranda of agreements, memoranda of agreed points, bids, tenders, tariff orders, expression of interest, letter of intent, hire purchase

Supernova Systems Pvt. Ltd. FOR, SUPERNOVA ENGINEERS LTD.

Director/Authorised Signatory Authorised Signatory/Director

For, Supernova Systems Pvt. Ltd. For, SUPERNOVA ENGINEERS LTD.

Director/Authorised Signatory AUTHORISED SIGNATORY/DIRECTOR

agreements, lease/ licence agreements, tenancy rights, agreements/ panchnamas for right of way, equipment purchase agreements, agreement with customers, purchase and other agreements with the supplier/ manufacturer of goods/ service providers, other arrangements, undertakings, deeds, bonds, schemes, insurance covers and claims and clearances and other instruments of whatsoever nature and description, whether written, oral or otherwise and all rights, title, interests, claims and benefits thereunder;

(d) investments in shares, debentures and other securities held by the Transferor Company;

(e) all the debts, liabilities, duties and obligations including contingent liabilities of the Transferor Company; and

(f) all books, records, files, papers, engineering and process information, records of standard operating procedures, computer programs along with their licenses, drawings, manuals, data, catalogues, quotations, sales and advertising materials, lists of present and former customers and suppliers, customer credit information, customer pricing information and other records whether in physical or electronic form, in connection with or relating to the business of the Transferor Company.

(g) all the employees, who are on the payrolls of the Transferor Company, employees/personnel engaged on contract basis and contract labourers and interns/trainees, engaged by the Transferor Company, at its respective offices, branches or otherwise, and any other employees/personnel and contract labourers and interns/trainees hired by the Transferor Company.

All terms and words used in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the 2013 Act, as applicable, the Income Tax Act and other applicable laws, rules, regulations, bye-laws, as the case may be or any statutory modification or re-enactment thereof for the time being in force.

4. SHARE CAPITAL

4.1 The capital structure of SSPL, the Transferor Company as on 31st March 2022 is as under:

Supernova Systems Pvt. Ltd.
Director/Authorised Signatory

FOR, SUPERNOVA ENGINEERS LTD.
Authorised Signatory/Director

For, Supernova Systems Pvt. Ltd.
Director/Authorised Signatory

For, SUPERNOVA ENGINEERS LTD.
AUTHORISED SIGNATORY/DIRECTOR

Authorised Share Capital	Amount in Rs.
10,000 Equity Shares of Rs 10/- each	1,00,000
Issued, Subscribed & Paid Up Share Capital	**Amount in Rs.**
10,000 Equity Shares of Rs 10/- each fully paid	1,00,000

There has been no change in the issued, subscribed and paid up share capital of SSPL since the aforesaid date.

4.2 The capital structure of SEL, the Transferee Company as on 31st March, 2022 is as under:

Authorised Share Capital	Amount in Rs.
52,50,000 Equity Shares of Rs10/- each	5,25,00,000
Issued, Subscribed & Paid Up Share Capital	**Amount in Rs.**
46,25,000 Equity Shares of Rs10/- each fully paid	4,62,50,000

There has been no change in the issued, subscribed and paid up share capital of SEL after the aforesaid date.

5. TRANSFER AND VESTING OF THE UNDERTAKING

5.1 Upon the coming into effect of the Scheme with effect from the Appointed Date, the Undertaking of the Transferor Company shall, pursuant to the sanction of the Scheme by the NCLT and pursuant to the provisions of Sections 230 – 232 of the Companies Act, 2013, and all other provisions of applicable law, if any as applicable, will be and shall stand transferred to and vested in and/or be deemed to have been transferred to and vested in the Transferee Company, as a going concern, in accordance with Section 2(1B) of the Income Tax Act, 1961 without any further act, instrument, deed, matter or thing so as to become, as and from the Appointed Date, the undertaking of the Transferee Company by virtue of and in the manner provided in this Scheme.

5.2 Without prejudice to the generality of Clause 5.1 above, upon the coming into effect of the Scheme and with effect from the Appointed Date:-

a) All the estate, assets (including intangible assets), properties, investments of all kinds, rights, claims, title, interest and authorities including accretions and appurtenances, whether or not provided and/or recorded in the books of accounts of the Transferor Company, comprised in the Undertaking of whatsoever nature and where-so-ever situate shall, without any further act, instrument or deed, cost or charge and without any notice or other intimation to any third party

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for the transfer of the same, will be and shall stand transferred to and vested in the Transferee Company and/or be deemed to be transferred to and vested in the Transferee Company as a part of the transfer of the Undertaking as a going concern so as to become, as and from the Appointed Date, the estate, assets (including intangible assets), properties, investments of all kinds, rights, claims, title, interest and authorities including accretions and appurtenances of the Transferee Company.

b) such of the assets and properties of the Transferor Company as are movable in nature or incorporeal property or are otherwise capable of transfer by delivery or possession, or by endorsement and/or delivery shall, without any cost or charge and without any notice or other intimation to any third party for the transfer of the same, be and stand transferred to and vested in the Transferee Company and/or be deemed to stand transferred to the Transferee Company as a part of the transfer of the Undertaking as a going concern so as to become from the Appointed date the assets and properties of the Transferee Company. The vesting pursuant to this sub-clause shall be deemed to have occurred by physical or constructive delivery or by endorsement and delivery or by vesting and recordal pursuant to this Scheme, as appropriate to the property being vested and title to the property shall be deemed to have been transferred accordingly.

c) All other movable properties of the Transferor Company, including investments of all kinds, sundry debtors, receivables, bills, credits, loans and advances, if any, whether recoverable in cash or in kind or for value to be received, bank balances, deposits with any Government, quasi government, local or other authority or body or with any company or other person, shall without any further act, instrument or deed, cost or charge, be and shall stand transferred to and vested in the Transferee Company and/or deemed to have been transferred to and vested in the Transferee Company, by way of delivery of possession of the respective documents, as applicable, as a part of the transfer of the Undertaking as a going concern, so as to become from the Appointed Date, the assets and properties of the Transferee Company.

d) The Transferee Company may, if it so deems appropriate, give notice in such form as it deems fit and proper, to each such debtor or obligor, that pursuant to the sanction of this Scheme by the NCLT, such debt, loan, advance, claim, bank balance, deposit or other asset be paid or

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made good or held on account of the Transferee Company as the person entitled thereto, to the end and intent that the right of the Transferor Company to recover or realize all such debts (including the debts payable by such debtor or obligor to the Transferor Company) stands transferred and assigned to the Transferee Company and that appropriate entries should be passed in the books of accounts of the relevant debtors or obligors to record such change. It is hereby clarified that investments, if any, made by the Transferor Company and all the rights, title and interest of the Transferor Company in any licensed properties or leasehold properties shall, pursuant to the 2013 Act and the provisions of this Scheme, without any further act or deed, be transferred to and vested in or be deemed to have been transferred to and vested in the Transferee Company.

e) All immovable properties of the Transferor Company, including land together with the buildings and structures standing thereon and rights and interests in immovable properties of the Transferor Company, whether freehold or leasehold or licensed or otherwise and all documents of title, rights and easements in relation thereto shall stand transferred to and be vested in and transferred to and/or be deemed to have been transferred to and vested in the Transferee Company, without any further act or deed done or being required to be done by the Transferor Company and/or the Transferee Company. The Transferee Company shall be entitled to exercise all rights and privileges attached to the aforesaid immovable properties and shall be liable to pay the ground rent and taxes and fulfil all obligations in relation to or applicable to such immovable properties. The mutation of the ownership or title, or interest in the immovable properties shall, upon this Scheme becoming effective, be made and duly recorded in the name of the Transferee Company by the appropriate authorities pursuant to the sanction of this Scheme by the NCLT in accordance with the terms hereof. It is however clarified that the applicable stamp duty for such transfer on amalgamation under the order of the Hon'ble Tribunal shall be duly paid.

f) All lease license or rent agreements entered into by the Transferor Company with various landlords, owners and lessors in connection with the use of the assets of the Transferor Company, together with security deposits and advance/prepaid lease/license fee, etc., shall stand automatically transferred and vested in favour of the Transferee Company on the same terms and conditions without any further act,

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instrument, deed, matter or thing being made, done or executed. The Transferee Company shall continue to pay rent or lease or license fee as provided for in such agreements, and the Transferee Company and the relevant landlords, owners and lessors shall continue to comply with the terms, conditions and covenants there-under. Without limiting the generality of the foregoing, the Transferee Company shall also be entitled to refund of security deposits paid under such agreements by the Transferor Company.

g) All permissions, approvals, consents, subsidies, incentives, privileges, income tax benefits and exemptions, indirect tax benefits and exemptions, all other rights, benefits and liabilities related thereto, licenses, powers and facilities of every kind, nature and description whatsoever, provisions and benefits of all agreements, contracts and arrangements and all other interests in connection with or relating to the Transferor Company enjoyed or conferred upon or held or availed of by the Transferor Company and all rights and benefits that have accrued or which may accrue to the Transferor Company, whether on, before or after the Appointed Date, if any, shall stand transferred to and vested in and/or be deemed to be transferred to and vested in the Transferee Company as a part of the transfer of the Undertaking as a going concern, so as to become, as and from the Appointed Date, the permissions, approvals, consents, subsidies, privileges, income tax benefits and exemptions, indirect tax benefits and exemptions, all other rights, benefits and liabilities related thereto, licenses, powers and facilities of every kind, nature and description whatsoever, provisions and benefits of all agreements, contracts and arrangements, of the Transferee Company and shall remain valid, effective and enforceable on the same terms and conditions. It is further clarified that they shall be deemed to have originally been given by, issued to or executed in favour of the Transferee Company, and the Transferee Company shall be bound by the terms thereof and the obligations and duties there under, and the rights and benefits under the same shall be available to the Transferee Company.

h) All contracts, deeds, bonds, agreements, schemes, arrangements and other instruments, permits, its rights, entitlements, licenses (including the licenses granted by any Governmental, statutory or regulatory bodies) for the purpose of carrying on the business of the Transferor Company, and in relation thereto, and those relating to tenancies, privileges, powers, facilities of every kind and description of

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whatsoever nature in relation to the Transferor Company, or to the benefit of which, the Transferor Company may be eligible and which are subsisting or having effect immediately before the Effective Date, shall be in full force and effect on, against or in favour of the Transferee Company and may be enforced as fully and effectually as if, instead of the Transferor Company, the Transferee Company had been a party or beneficiary or obligor thereto. In relation to the same, any procedural requirements required to be fulfilled solely by the Transferor Company (and not by any of its successors), shall be fulfilled by the Transferee Company as if it is the duly constituted attorney of that Transferor Company.

i) Without prejudice to the generality of the foregoing, all leave and license agreements/deeds, lease agreements/deeds, bank guarantees, corporate guarantees, performance guarantees and letters of credit, hire purchase agreements, lending agreements and such other agreements, deeds, documents and arrangements pertaining to the business of the Transferor Company or to the benefit of which the Transferor Company may be eligible and which are subsisting or having effect immediately before the Effective Date, including all rights and benefits (including benefits of any membership, deposit, advances, receivables or claims) arising or accruing there from, shall, with effect from Appointed Date and upon this Scheme becoming effective, by operation of law pursuant to the vesting orders of the NCLT, be deemed to be contracts, deeds, bonds, agreements, schemes, arrangements and other instruments, permits its, rights, entitlements, licenses, memberships of the Transferee Company. Such property and rights shall stand vested in the Transferee Company and shall be deemed to have become the property of the Transferee Company by operation of law, whether the same is implemented by endorsement or delivery and possession or recordal in any other manner.

j) All the intellectual property rights of any nature whatsoever, including but not limited to intangible assets appertaining to the Transferor Company, whether or not provided in books of accounts of the Transferor Company, shall stand transferred and vested in the Transferee Company as a part of the transfer of the Undertaking as a going concern, so as to become, as and from the Appointed Date, the intellectual property of the Transferee Company.

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k) All taxes (including but not limited to advance tax, tax deducted at source, minimum alternate tax credits, securities transaction tax, taxes withheld/paid in a foreign country, value added tax, sales tax, goods and services tax, service tax, excise duty, etc.) payable by or refundable to or being the entitlement of the Transferor Company, including all or any refunds or claims shall be treated as the tax liability or refunds/credits/claims, as the case may be, of the Transferee Company, and any tax incentives, advantages, privileges, exemptions, credits, tax holidays, remissions, reductions, as would have been available to the Transferor Company, shall pursuant to this Scheme becoming effective, be available to the Transferee Company. Benefit of tax losses including brought forward business loss, unabsorbed depreciation, etc., up to Appointed Date, shall be available to Transferee Company with effect from Appointed Date in terms of section 72A of Income Tax Act.

l) The Transferee Company shall be entitled to claim refunds or credits, including Input Tax Credits, with respect to taxes paid by, for, or on behalf of, the Transferor Company under applicable laws, including but not limited to sales tax, value added tax, goods and services tax, service tax, excise duty or any other tax, whether or not arising due to any inter se transaction, even if the prescribed time limits for claiming such refunds or credits have lapsed. For the avoidance of doubt, Input Tax Credits already availed of or utilized by the Transferor Company and the Transferee Company in respect of inter se transactions shall not be adversely impacted by the cancellation of inter se transactions pursuant to this Scheme.

m) All statutory rights and obligations of Transferor Company would vest on/accrue to Transferee Company. Hence, obligation of the Transferor Company, prior to the Effective Date, to issue or receive any statutory declaration or any other Forms by whatever name called, under the State VAT Acts or the Central Sales Tax Act or Central and/or State Goods and Services Tax Act or any other act for the time being in force, would be deemed to have been fulfilled if they are issued or received by Transferee Company and if any Form relatable to the period prior to the said Effective Date is received in the name of the Transferor Company, it would be deemed to have been received by the Transferee Company in fulfilment of its obligations.

n) Benefits of any and all corporate approvals as may have already been taken by the Transferor Company, whether being in the nature of

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compliances or otherwise, shall stand transferred to and vested in the Transferee Company as a part of the transfer of the Undertaking as a going concern, and the said corporate approvals and compliances shall be deemed to have originally been taken and complied with by the Transferee Company.

o) The resolutions, if any, of the Transferor Company, which are valid and subsisting on the Effective Date, shall stand continue to be valid and subsisting and be considered as resolutions of the Transferee Company and if any such resolutions have any monetary limits approved under the provisions of the 2013 Act as applicable, or any other applicable statutory provisions, then the said limits shall be added to the limits, if any, under like resolutions passed by the Transferee Company and shall constitute the aggregate of the said limits in the Transferee Company.

p) Such of the assets comprised in the Undertaking and which are acquired by the Transferor Company on or after the Appointed Date but prior to the Effective Date, shall stand transferred to and vested in and be deemed to have been transferred to and vested in the Transferee Company as a part of the transfer of the Undertaking as a going concern, so as to become, as and from the Appointed Date, the assets of the Transferee Company.

5.3 Without prejudice to the generality of Clause 5.1 above, upon the coming into effect of this Scheme and with effect from the Appointed Date:-

a) all the Liabilities, whether or not provided in the books of the Transferor Company, shall without any notice or other intimation to any third party for the transfer of the same, be and stand transferred to and vested in and be deemed to have been transferred to and vested in the Transferee Company as a part of the transfer of the Undertaking as a going concern and the same shall be assumed by the Transferee Company, to the extent they are outstanding on the Effective Date and shall become as and from the Appointed Date the Liabilities of the Transferee Company on the same terms and conditions as were applicable to the Transferor Company, and the Transferee Company shall meet, discharge and satisfy the same.

b) all Liabilities comprised in the Undertaking, and which are incurred or which arise or accrue to the Transferor Company on or after the Appointed Date but prior to the Effective Date, shall stand transferred to and vested in and be deemed to have been transferred to and vested

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in the Transferee Company as a part of the transfer of the Undertaking as a going concern and the same shall be assumed by the Transferee Company and to the extent they are outstanding on the Effective Date on the same terms and conditions as were applicable to the Transferor Company, and the Transferee Company shall meet, discharge and satisfy the same.

c) any Liabilities of the Transferor Company as on the Appointed Date that are discharged by the Transferor Company on or after the Appointed Date but prior to the Effective Date, shall be deemed to have been discharged for and on account of the Transferee Company.

d) all loans raised and utilized, liabilities, duties and taxes and obligations incurred or undertaken by the Transferor Company on or after the Appointed Date but prior to the Effective Date shall be deemed to have been raised, used, incurred or undertaken for and on behalf of the Transferee Company and shallstand transferred to and vested in and be deemed to have been transferred to and vested in the Transferee Company as a part of the transfer of the Undertaking as a going concern and the same shall be assumed by the Transferee Company and to the extent they are outstanding on the Effective Date, the Transferee Company shall meet, discharge and satisfy the same.

e) loans, advances and other obligations (including any arrangement which may give rise to a contingent liability in whatever form), if any, due or which may at any time in future become due between the Transferor Company and the Transferee Company shall stand discharged and come to an end and there shall be no liability in that behalf on any party and the appropriate effect shall be given in the books of accounts and records of the Transferee Company.

6. EMPLOYEES

6.1 Upon the coming into effect of this Scheme, all employees, who are on the payrolls of the Transferor Company, employees/personnel engaged on contract basis and contract labourers and interns/trainees of the Transferor Company who are on its payrolls shall become employees of the Transferee Company with effect from the Effective Date, on such terms and conditions as are no less favourable than those on which they are currently engaged by the Transferor Company, without any interruption of service as a result of this amalgamation and transfer. With regard to provident fund, gratuity, leave encashment and any other special scheme or benefits created or existing for the benefit of such

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employees of the Transferor Company, upon this Scheme becoming effective, the Transferee Company shall stand substituted for the Transferor Company for all purposes whatsoever, including with regard to the obligation to make contributions to relevant authorities, in accordance with the provisions of applicable laws or otherwise. It is hereby clarified that upon this Scheme becoming effective, the aforesaid benefits or schemes shall continue to be provided to the transferred employees and the services of all the transferred employees of the Transferor Company for such purpose shall be treated as having been continuous.

6.2 The existing provident fund, employee state insurance contribution, gratuity fund, superannuation fund, staff welfare scheme and any other special scheme (including without limitation any employees stock option plan) or benefits created by the Transferor Company for its employees shall be continued on the same terms and conditions or be transferred to the existing provident fund, employee state insurance contribution, gratuity fund, superannuation fund, staff welfare scheme, etc., being maintained by the Transferee Company or as may be created by the Transferee Company for such purpose. Pending such transfer, the contributions required to be made in respect of such employees shall continue to be made by the Transferee Company to the existing funds maintained by the Transferor Company.

6.3 The Transferee Company undertakes that for the purpose of payment of any retrenchment compensation, gratuity and other terminal benefits to the employees of the Transferor Company, the past services of such employees with the Transferor Company shall also be taken into account and it shall pay the same accordingly, as and when such amounts are due and payable. Upon this Scheme becoming effective, the Transferor Company will transfer/handover to the Transferee Company, copies of employment information, including but not limited to, personnel files (including hiring documents, existing employment contracts, and documents reflecting changes in an employee's position, compensation, or benefits), payroll records, medical documents (including documents relating to past or ongoing leaves of absence, on the job injuries or illness, or fitness for work examinations), disciplinary records, supervisory files relating to its and all forms, notifications, orders and

contribution/identity cards issued by the concerned authorities relating to benefits transferred pursuant to this sub-clause.

6.4 The Transferee Company shall continue to abide by any agreement(s)/ settlement(s) entered into by the Transferor Company with any of its employees prior to Appointed Date and from Appointed Date till the Effective Date.

7. LEGAL PROCEEDINGS

7.1 All proceedings of whatsoever nature (legal and others, including any suits, appeals, arbitrations, execution proceedings, revisions, writ petitions, if any) by or against the Transferor Company shall not abate, be discontinued or be in any way prejudicially affected by reason of the transfer of the Undertaking or anything contained in this Scheme but the said proceedings, shall, till the Effective Date be continued, prosecuted and enforced by or against the Transferor Company, as if this Scheme had not been made.

7.2 Upon the coming into effect of this Scheme, all suits, actions, and other proceedings including legal and taxation proceedings, (including before any statutory or quasi-judicial authority or tribunal) by or against the Transferor Company, whether pending and/or arising on or before the Effective Date shall be continued and / or enforced by or against the Transferee Company as effectually and in the same manner and to the same extent as if the same had been instituted and/or pending and/or arising by or against the Transferee Company.

7.3 The Transferee Company undertakes to have accepted on behalf of itself, all suits, claims, actions and legal proceedings initiated by or against the Transferor Company transferred to its name and to have the same continued, prosecuted and enforced by or against the Transferee Company.

8. CONDUCT OF BUSINESS

8.1 With effect from the Appointed Date and up to and including the Effective Date:

(a) the Transferor Company shall carry on and be deemed to have carried on all business and activities and shall hold and stand possessed of and shall be deemed to hold and stand possessed of the entire

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Undertaking for and on account of, and in trust for, the Transferee Company;

(b) all profits and income accruing or arising to the Transferor Company, and losses and expenditure arising or incurred by the Transferor Company for the period commencing from the Appointed Date shall, for all purposes, be treated as and be deemed to be the profits, income, losses or expenditure, as the case may be, of the Transferee Company;

(c) any of the rights, powers, authorities or privileges exercised by the Transferor Company shall be deemed to have been exercised by the Transferor Company for and on behalf of, and in trust for and as an agent of the Transferee Company. Similarly, any of the obligations, duties and commitments that have been undertaken or discharged by the Transferor Company shall be deemed to have been undertaken for and on behalf of and as an agent of the Transferee Company;

(d) all taxes, where applicable, (including but not limited to advance income tax, tax deducted at source, minimum alternate tax, wealth tax, taxes withheld/paid in a foreign country, sales tax, valued added tax, goods and services tax, excise duty, customs duty, service tax, VAT, tax refunds) payable by or refundable to the Transferor Company, including all or any tax refunds or tax liabilities or tax claims arising from pending tax proceedings, under any law, on or before the Effective Date, shall be treated as or deemed to be treated as the tax liability or tax refunds/ tax claims (whether or not recorded in the books of the Transferor Company) as the case may be, of the Transferee Company, and any unabsorbed tax losses and depreciation, etc., as would have been available to the Transferor Company on or before the Effective Date, shall be available to the Transferee Company upon the Scheme coming into effect; and

8.2 Subject to the terms of the Scheme, the transfer and vesting of the Undertaking as per the provisions of the Scheme shall not affect any transactions or proceedings already concluded by the Transferor Company on or with effect from the Appointed Date till the Effective Date. The Transferee Company accepts and adopts all acts, deeds and things made, done and executed by the Transferor Company.

9. CONSIDERATION

9.1 The Transferee Company shall without any further application, act,

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instrument or deed, issue and allot to each shareholder of the Transferor Company whose name is recorded in the register of members of the Transferor Company on the Record Date in the following Ratio (**"Share Entitlement Ratio"**):

"440 (For Hundred and Forty) fully paid up Equity shares of Rs.10/- (Rupees Ten only) each of SEL, the Transferee Company for every 10 (Ten) fully paid Equity shares of Rs.10/- (Rupees Ten only) each held by the shareholder in SSPL, the Transferor Company."

9.2 The Share Exchange Ratio has been arrived at on basis of the valuation report of Dr. C A Anjali Choksi, a Registered Valuer.

9.3 No new shares shall be issued by the Transferee Company against the shares of the Transferee Company held by the Transferor Company. Upon the scheme being effective, 4,65,000 (Four Lacs Sixty Five Thousand) shares held by the Transferor Company in the Transferee Company shall stand cancelled by operation of legal provisions and the issued, subscribed and paid up share capital of the Transferee Company shall stand reduced to that extent viz. Rs. 46,50,000/-. The same shall bected as envisaged specifically in Clause 11, hereinunder.

9.4 Upon the new equity shares in Transferee Company being issued and allotted to the equity shareholders of Transferor Company in terms of Clause 9.1 above, the equity shares of Transferor Company shall be deemed to have been automatically cancelled and be of no effect.

9.5 The shares to be issued and allotted by the Transferee Company in terms of Clauses 9.1 above shall be subject to the provisions of the Memorandum and Articles of association of the Transferee Company and shall rank *paripassu* in all respects with the existing shares of Transferee Company.

9.6 The issue and allotment of shares by the Transferee Company to the equity shareholders of the Transferor Company as provided in this Scheme as an integral part thereof, shall be deemed to have been carried out without any further act or deed by Transferee Company as if the procedure laid down under Section 62(1)(c) of the 2013 Act and any other applicable provisions were duly complied with.

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10. ACCOUNTING TREATMENT

Upon the Scheme becoming effective and with effect from the Appointed Date, the Transferee Company shall account for the amalgamation in its books at the close of business on the day immediately preceding the Appointed Date in accordance and in compliance with methods of accounting prescribed under the Pooling of Interest Method of Accounting Standard 14, as notified under Section 133 of the Act, read with applicable rules as under:

(a) With effect from the Appointed Date, all the assets and liabilities appearing in the books of account of the Transferor Company (including Reserves, if any) shall stand transferred to and vested in the Transferee Company at their existing carrying amounts and in same form as at the date of the amalgamation.

(b) The face value of the new Equity Shares of the Transferee Company issued to the shareholders of the Transferor Company pursuant to clause 9.1 shall be credited to the Equity Share Capital account in the books of the Transferee Company.

(c) Upon the scheme being effective, the inter-company balances and inter-company investments, if any, appearing in the books of accounts of the Transferor Company and the Transferee Company shall stand cancelled.

(d) The difference being the excess of Net Asset Value of the Transferor Company with respect to its undertaking transferred to and recorded by the Transferee Company as per clause 10 (a) above and the face value of the Equity Shares allotted, if any, shall be credited to Capital Reserve of the Transferee Company. The shortfall, if any shall be debited to the Goodwill account of the Transferee Company.

11. DISSOLUTION OF THE TRANSFEROR COMPANY

Upon the coming into effect of the Scheme, the Transferor Company shall, without any further act, instrument or deed, stand dissolved without winding-up.

12. CONSOLIDATION OF AUTHORISED SHARE CAPITAL AND AMENDMENT OF MEMORANDUM OF ASSOCIATION

A. CAPITAL CLAUSE:

12.1 As an integral part of the Scheme, upon this Scheme becoming effective and with effect from Appointed Date, the authorised share capital of the Transferor Company amounting to Rs. 1,00,000/-or the amount as on

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the Effective Date shall, without any further act, instrument or deed or payment of filing fees payable to the Registrar of Companies or stamp duty, stand transferred to and be merged with the authorised share capital of the Transferee Company.

12.2 Clause V of the Memorandum of Association of the Transferee Company shall, without any further act, instrument or deed, stand altered, modified and amended pursuant to Sections 13, 61 and 62 of the 2013 Act and other applicable provisions of the 2013 Act, as the case may be and be replaced accordingly.

12.3 It is further clarified that under the accepted principle of single window clearance, the approval of the members of the Transferee Company to the Scheme shall be deemed to be their consent/approval for the proposed amendment of the Capital clause of the Memorandum of Association of the Transferee Company, under the provisions of Section 13, 61 and 62 of the 2013 Act and other applicable provisions of the 2013 Act. The Transferee Company shall not be required to pass separate resolutions or undertake any further procedure as required under the Act, nor any additional fees or stamp duty, shall be payable by the Transferee Company.

13. CONDITIONS TO EFFECTIVENESS OF THE SCHEME

The Scheme is conditional upon and subject to:

(a) The transferor and transferee company jointly making the requisite company applications/petitions under Sections 230 to 232 of the 2013 Act and other applicable provisions of the Act to the NCLT for seeking sanction of this Scheme.

(b) the approval by the requisite majority of the shareholders and creditors of the Companies, as may be directed by the NCLT or any other competent authority, as may be applicable.

(c) such other filings, approvals and sanctions, as may be required by law from the relevant authorities in respect of the Scheme;

(d) the NCLT having accorded sanction to the Scheme and if any modifications have been prescribed the same being acceptable to the Companies; and

(e) Such certified/authenticated copy of the order of the NCLT sanctioning this Scheme being filed with the Registrar of Companies, Gujarat, by the Companies.

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In case any of the conditions in the Scheme are not satisfied or waived, then the Companies shall be at liberty to withdraw the Scheme.

14. DIVIDEND

14.1 The Companies shall be entitled to declare and pay dividends, whether interim and/or final, to their members in respect of the accounting period prior to the Effective Date.

14.2 The holders of the shares of the Companies shall, save as expressly provided otherwise in this Scheme, continue to enjoy their existing rights under their respective Articles of Association including the right to receive dividends.

14.3 It is clarified that the aforesaid provisions in respect of declaration of dividends are enabling provisions only and shall not be deemed to confer any right on any member of the Companies to demand or claim any dividends which, subject to the provisions of the 2013 Act, as applicable, shall be entirely at the discretion of the respective Boards of Directors of the Companies, and subject to the approval, if required, of the respective members of the Companies.

15. APPLICATIONS

15.1 The Companies shall undertake requisite procedure for filing necessary application and petition before the Ahmedabad Bench of NCLT under Sections 230 to 232 of the 2013 Act, seeking orders for dispensing with or convening, holding and/or conducting of the meeting(s) of the classes of their respective shareholders and creditors and for sanctioning this Scheme with such modifications, as may be approved by the NCLT.

15.2 The Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to any Governmental Authority, if required, under any law for such consents and approvals which the Transferee Company may require to carry on the business of the Transferor Company.

16. MODIFICATIONS TO THE SCHEME

The Companies (by their respective Board of Directors) may, in their full and absolute discretion:

(a) assent to any alteration(s) or modification(s) to this Scheme which NCLT and/or any other Governmental Authority may deem fit to

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approve or impose, and/or effect any other modification or amendment jointly and mutually agreed in writing, and to do all acts, deeds and things as may be necessary, desirable or expedient for the purposes of this Scheme;

(b) give such directions (acting jointly) as they may consider necessary to settle any question or difficulty arising under the Scheme or in regard to and of the meaning or interpretation of this Scheme or implementation hereof or in any matter whatsoever connected therewith, or to review the position relating to the satisfaction of various conditions of this Scheme and if necessary, to any of those (to the extent permissible under law);

(c) modify or vary this Scheme; or

(d) if any part of this Scheme is found to be unworkable for any reasons whatsoever withdraw this Scheme prior to the Effective Date in any manner at any time; or

(e) Determine jointly whether any asset, liability, employee, legal or other proceedings pertains to the Transferor Company or not, on the basis of any evidence that they may deem relevant for this purpose.

17. THE SCHEME TO BE OPERATIVE

17.1 The Scheme shall come into operation from the Appointed Date but the same shall become effective on and from the Effective Date.

17.2 With effect from the Effective Date, the Transferee Company shall carry on and shall be authorized to carry on the businesses of the Transferor Company. The Transferee Company is and shall always be deemed to have been authorized to execute any pleadings, applications, forms etc. as may be required to remove any difficulties and carry out any formalities or compliance as are necessary for the implementation of the Scheme.

17.3 The Transferor Company and the Transferee Company shall be entitled to, amongst other, file/ or revise its income tax returns, TDS/TCS returns, wealth tax returns, service tax returns, Goods and Service Tax returns, excise returns, VAT returns, entry tax returns, professional tax returns or any other statutory returns, if required. The Transferee Company shall be entitled to claim credit for advance tax paid, tax deducted at source, claim for deduction of sum prescribed under Section 43B of the Income Tax Act on payment basis, claim for deduction of

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provisions written off by Transferor Company previously disallowed in the hands of Transferor Company under the Income Tax Act, credit of tax under Section 115JB read with Section 115JAA of the Income Tax Act, credit of foreign taxes paid/ withheld etc., if any, pertaining to the Transferor Company as may be required consequent to implementation of this Scheme and where necessary to give effect to this Scheme, even if the prescribed time limits for filing or revising such returns have lapsed without incurring any liability on account of interest, penalty or any other sum. The Transferee Company shall have the right to claim refunds, tax credits, set-offs and/or adjustments relating to its income or transactions entered into by it with effect from Appointed Date. The taxes or duties paid by, for, or on behalf of, the Transferor Company relating to the period on or after Appointed Date shall be deemed to be the taxes or duties paid by the Transferee Company and the Transferee Company shall be entitled to claim credit or refund for such taxes or duties.

17.4 Any advance tax, self-assessment tax, minimum alternate tax and/or TDS credit available or vested with the Transferor Company, including any taxes paid and taxes deducted at source and deposited by the Transferor Company on inter se transactions during the period between Appointed Date and the Effective Date shall be treated as tax paid by the Transferee Company and shall be available to the Transferee Company for set-off against its liability under the Income Tax Act and any excess tax so paid shall be eligible for refund together with interest. Further, TDS deposited, TDS certificates issued or TDS returns filed by the Transferor Company on transactions other than inter se transactions during the period between Appointed Date and the Effective Date shall continue to hold good as if such TDS amounts were deposited, TDS certificates were issued and TDS returns were filed by the Transferee Company. Any TDS deducted by, or on behalf of, the Transferor Company on inter se transactions will be treated as tax deposited by the Transferee Company.

17.5 Transfer and vesting of assets and liabilities of the Transferor Company (including intangible assets, whether or not recorded in the books) as the case may be is not a sale in the course of business or otherwise.

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18. COSTS

All costs, charges and expenses (including, but not limited to, any taxes and duties, stamp duty, registration charges, etc.) of /payable by the Companies in relation to or in connection with the Scheme and incidental to the completion of the Amalgamation in pursuance of the Scheme shall be borne by Transferee Company.

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Director/Authorised Signatory

For, Supernova Systems Pvt. Ltd.

Director/Authorised Signatory

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Annexure "B"

ANNEXURE - 1

SUPERNOVA
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List of Assets of the assets of Supernova Systems Private Limited as on 30th June 2023, to be transferred to Supernova Engineers Limited, pursuant to the scheme sanctioned by the Hon'ble National Company Law Tribunal, Bench at Ahmedabad.

Schedule

Part I

Particulars of Freehold Properties

(i) Land: NIL

(ii) Building: NIL

(iii) Plant and Machinery: **(if any, imbedded or attached to earth)** NIL

Part II

Particulars of Leasehold Properties

(i) Land: NIL

(ii) Building: NIL

(iii) Plant and Machinery: **(if any, imbedded or attached to earth)** NIL

Part III

A. Particulars of Investment in Shares & Securities:

Sr. No.	Description	Face Value
1	Mundra Port & Special Economic Zone	24,035.00
2	Sharthav Infrastructure-Invest Eco State	35,00,000.00
3	Supernova Engineers Limited (These share shall stand cancelled on Scheme being effective)	78,50,000.00

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B. Particulars of Bank Accounts:

Sr. No.	Bank & Branch	Type of Account	Account No.
1	ICICI Bank SG Road Branch Ahmedabad	Current	029505500643
2	DCB Bank Ltd CG Road Branch Ahmedabad	Current	03620200000135
3	HDFC Bank Ltd Bodakdev Branch Ahmedabad	Current	07832320001054
4	State Bank of India Kargil char rasta Branch Ahmedabad	Current	35959163909
5	Bank Of India Panchvati Char Rasta Branch Ahmedabad	Current	200120110000294

C. Registration with Various Authorities under respective laws, Bodies etc.:

Name of Authority	Nature of registration	Registration Number
INCOME TAX DEPARTMENT	PAN	AAECS9195B
	TAN	AHMS01494D
EXCISE & CUSTOMS	DGFT IE CODE NO.	807000043
MINISTRY OF INDUSTRIES GOVERNMENT OF INDIA REGISTRAR OF COMPANY'S CIN NO.		U31110GJ1989PTC012833
SMALL SCALE INDUSTRIES REG.NO.		GJ01D0140457
(GUJARAT)		
DIC OFFICE		
PF REGISTRATION NO.		GJAHD50502
ESI REGISTRATION		3726521102
PROFESSIONAL TAX		PRC016620157
REGISTRATION NO.		
LIC GROUP GRATUITY POLICY NO.		701001338

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D. VEHICLES: (IF ANY)

Sr. No.	Description	Registration No.
1	AUDI – Q8	GJ-01-WC-7000

For, Supernova Systems Pvt. Ltd.

Director/Authorised Signatory

Authorised Signature

Registered Office : First Floor, Shapath Hexa, 3, B Wing, Opp. Gujarat High Court, Nr. Ganesh Merediyan, Near Sola Bridge, S. G. Highway, Ahmedabad - 380060 Gujarat.
T : +91-79-66111136 / 37 / 38/ 39 / 40 E : spares@supernovagenset.com (For Business), jms@supernovagenset.com (for Legal) W www.supernovagenset.com
Corporate Identity No. : U31110GJ1989PTC012833